THE BENEVOLENT BANDWIDTH FOUNDATION, INC.

A Massachusetts Nonprofit Corporation

BYLAWS

ARTICLE I — NAME AND PRINCIPAL OFFICE

Section 1.1 — Name

The name of the corporation is The Benevolent Bandwidth Foundation, Inc. (hereinafter referred to as "the Foundation" or "b2").

Section 1.2 — Principal Office

The principal office of the Foundation shall be located in the Commonwealth of Massachusetts. The Board of Directors may change the principal office location by resolution at any duly noticed board meeting.

Section 1.3 — Other Offices

The Foundation may maintain such other offices, within or outside Massachusetts, as the Board of Directors may from time to time designate.

ARTICLE II — MISSION, VISION, AND PURPOSES

Section 2.1 — Mission

The Foundation's mission is to solve problems with transparent and open technologies that deliver public benefit by prioritizing safety, fairness, and trust, without storing or persisting any human data.

Section 2.2 — Vision

The Foundation envisions a world where the benefits of artificial intelligence are shared by everyone, strengthening fairness, opportunity, and human agency.

Section 2.3 — Core Principles

The Foundation shall conduct all of its activities in accordance with the following core principles:

Problem-First Approach. The Foundation starts with real human problems, not technologies or solutions. All tools and projects must be practical, usable, and designed for genuine adoption by the communities they serve.

AI for Public Benefit. The Foundation uses artificial intelligence exclusively for public benefit, prioritizing safety over speed, fairness over convenience, and measurable positive impact on human lives.

Open by Default. The Foundation's code, documentation, and decisions are transparent and open source by default. Exceptions require documented justification by the Board.

No Human Data. Ever. The Foundation never retains, sells, or shares human data of any kind, including personal, behavioral, click, or input data. Content is never logged. Users are never tracked. Advertising is never rendered in any Foundation tool or product.

Political and Ideological Neutrality. The Foundation does not support any political party, candidate, ideology, government, country, or institution. The Foundation does not act on behalf of any specific organization. Funding does not buy influence over the Foundation's decisions, priorities, or direction.

Humility and Continuous Learning. The Foundation approaches its work with curiosity and humility. We invite feedback, acknowledge mistakes openly, and change course when evidence points to a better path.

Open and Inclusive Community. The Foundation welcomes anyone who wants to contribute regardless of background, geography, or affiliation. We support each other, build on each other's work, and grow together.

Ideas from Everywhere. The Foundation sources ideas from any individual or organization, including foundation members, nonprofits, NGOs, and community groups — provided the proposed work adheres to above principles.

Section 2.4 — Charitable and Educational Purposes

The Foundation is organized exclusively for charitable and educational purposes within the meaning of Section 501(c)(3) of the Internal Revenue Code, including:

• Advancing public benefit through the development and distribution of open-source technology tools that promote access to information, healthcare navigation, financial literacy, environmental sustainability, and community resilience;

• Educating and training the public, students, and early-career technologists in responsible AI development, open-source contribution, and human-centered design; and

• Fostering an inclusive global community of contributors dedicated to ensuring the benefits of artificial intelligence are shared equitably by all people.

Section 2.4 — Limitations

No part of the net earnings of the Foundation shall inure to the benefit of any private individual. The Foundation shall not carry on propaganda, attempt to influence legislation as a substantial part of its activities, or participate or intervene in any political campaign on behalf of or in opposition to any candidate for public office. The Foundation shall not carry on any activities not permitted to be carried on by a corporation exempt from federal income tax under Section 501(c)(3) of the Internal Revenue Code.

ARTICLE III — MEMBERS

Section 3.1 — No Members

The Foundation shall have no members within the meaning of Chapter 180 of the Massachusetts General Laws. The Foundation's community participants — including Foundation Advisors, Technical Advisors, and Contributors — are not members and hold no voting rights or legal interest in the Foundation. The affairs of the Foundation shall be managed exclusively by its Board of Directors.

ARTICLE IV — BOARD OF DIRECTORS

Section 4.1 — General Powers

The Board of Directors ("Board") shall manage and oversee all affairs of the Foundation. The Board has full authority to act on behalf of the Foundation, including approving budgets, entering into contracts, accepting donations and grants, hiring staff, and overseeing programs and activities.

Section 4.2 — Number of Directors

The Board shall consist of no fewer than three (3) and no more than fifteen (15) directors. The initial Board shall consist of five (5) directors. The Board may increase or decrease the number of directors by resolution, within the limits set forth herein.

Section 4.3 — Qualifications

Directors shall be individuals who are committed to the mission and principles of the Foundation, willing to accept fiduciary responsibility, and able to meet the attendance requirements set forth in Section 4.7. A majority of directors shall be independent, meaning they receive no compensation from the Foundation other than reimbursement of expenses.

Section 4.4 — Election and Terms

Directors shall be elected by the existing Board at any duly noticed board meeting. Each director shall serve a term of two (2) years and may be re-elected for successive terms without limit. Terms shall be staggered so that approximately half of the Board is elected each year, to ensure continuity of governance.

Section 4.5 — Resignation and Removal

Any director may resign at any time by providing written notice to the Clerk. A director may be removed by a two-thirds (2/3) vote of the remaining directors at any duly noticed board meeting, with or without cause. Vacancies created by resignation, removal, death, or incapacity shall be filled by a majority vote of the remaining directors.

Section 4.6 — Compensation

Directors shall serve without compensation. The Board may authorize reimbursement of reasonable expenses incurred in the performance of board duties. No director shall receive compensation for services rendered to the Foundation except as expressly approved by the Board and documented in the minutes.

Section 4.7 — Attendance Requirements

Directors are expected to attend at least seventy-five percent (75%) of formal Board meetings each fiscal year (i.e., at least three of four quarterly meetings). A director who fails to meet this standard without reasonable cause, as determined by the Board, may be removed pursuant to Section 4.5. Remote participation via video or telephone conference constitutes attendance.

Section 4.7 — Decision-Making Authority

Decision-making authority is allocated as follows:

Board of Directors. The Board has ultimate fiduciary and legal authority over the Foundation. The following matters require a formal Board vote:

- **Approval of annual budget and any unbudgeted expenditure exceeding $2500**
- **Entering into contracts or legal agreements on behalf of the Foundation**
- **Accepting grants or donations with conditions or restrictions**
- **Appointing or removing Foundation Advisors**
- **Electing or removing directors and officers**
- **Amending these Bylaws or the Articles of Organization**
- **Authorizing legal action or settlements**
- **Matters involving insurance, risk, and regulatory compliance**

- **Dissolving the Foundation**

Foundation Advisors. Foundation Advisors provide guidance and make recommendations to the Board on matters within their decision boundary, including: donations, grants, funding, costs, budget, escalations, risk, project ideas, FA/TA/ Contributor recruiting, and legal and regulatory matters. FA recommendations are presented at monthly roundtables and formally adopted by Board vote. Foundation Advisors do not have independent authority to bind the Foundation legally or financially.

Technical Advisors. Technical Advisors have decision-making authority within their project scope, including: technical direction, product roadmap, architecture and design, issue priority, definition of success, evaluation methods, standards, and dependency policy. TAs facilitate these decisions through consensus within the Technical Advisor community.

Contributors. Contributors have decision-making authority over: PR merges, releases, refactors, new issues, technical implementation details, and contributor recruiting within their project.

All formal Board decisions shall be logged and made publicly available via the Foundation's GitHub repository, except for decisions designated as confidential by the Board.

ARTICLE V — BOARD MEETINGS

Section 5.1 — Regular Meetings

The Board shall hold no fewer than four (4) formal board meetings per fiscal year, approximately quarterly. The Foundation may hold additional working sessions or community roundtables as frequently as the Board deems appropriate; such sessions do not constitute formal board meetings unless convened in accordance with this Article.

Section 5.2 — Formal Board Meeting Designation

The Foundation holds monthly community roundtables attended by directors, Foundation Advisors, Technical Advisors, and Contributors. The Board of Directors shall convene a formal Board meeting immediately following every other monthly roundtable, for a total of six (6) formal Board meetings per year. Each formal Board meeting is open to directors only and constitutes an official meeting of the Board for all purposes, including quorum, voting, and minute-keeping requirements.

The Clerk shall distribute a proposed agenda to all directors at least seven (7) days before each formal Board meeting. The Board may satisfy the annual notice requirement by adopting a meeting calendar at the first Board meeting of each fiscal year identifying the six (6) scheduled meeting dates.

Section 5.3 — Annual Meeting

The Board shall hold an annual meeting once per fiscal year for the purposes of reviewing the prior year's activities, approving the budget, electing directors whose terms have expired, and conducting such other business as may come before the Board.

Section 5.4 — Notice

Written notice of each formal Board meeting shall be provided to all directors at least seven (7) days in advance, stating the date, time, location (or video conference link), and agenda. Notice may be delivered by email. Notice may be waived by a director in writing or by attendance at the meeting without objection.

Section 5.5 — Quorum

A majority of the current number of directors shall constitute a quorum for the transaction of business. If a quorum is not present at a meeting, no formal votes may be taken. Directors present may adjourn the meeting to a future date.

Section 5.6 — Voting

Each director shall have one vote. Decisions shall be made by majority vote of directors present at a meeting where quorum exists, unless a higher threshold is specified elsewhere in these Bylaws or required by law. Proxy voting is not permitted.

Section 5.7 — Action Without a Meeting

Any action required or permitted to be taken at a Board meeting may be taken without a meeting if all directors consent to the action in writing (including email). Such written consents shall be filed with the minutes of the proceedings.

Section 5.8 — Remote Participation

Directors may participate in any Board meeting by telephone, video conference, or other electronic means by which all participants can hear and communicate with one another. Such participation constitutes presence in person at the meeting.

Section 5.9 — Minutes

The Clerk shall keep accurate minutes of all formal Board meetings, documenting attendance, quorum confirmation, motions made, votes taken, and outcomes. Minutes shall be reviewed and certified by the Clerk and distributed to all directors within fourteen (14) days of the meeting. Approved minutes shall be maintained permanently and, consistent with the Foundation's transparency principles, published on the Foundation's GitHub repository. The Board may designate portions of any meeting as

executive session, the minutes of which shall be maintained in the corporate records but not published publicly.

ARTICLE VI — OFFICERS

Section 6.1 — Officers

The officers of the Foundation shall be a President, a Treasurer, and a Clerk. The Board may appoint additional officers as it deems appropriate, including a Vice President or Assistant Clerk. All officers must be directors of the Foundation.

Section 6.2 — Election and Terms

Officers shall be elected by the Board at the annual meeting. Each officer shall serve a term of one (1) year and may be re-elected without limit. An officer may hold more than one office simultaneously.

Section 6.3 — President

The President shall be the chief executive of the Foundation, responsible for day-to-day leadership and operations. The President shall preside at all Board meetings, execute contracts and legal documents on behalf of the Foundation, and perform such other duties as the Board may assign. The President is the primary public representative of the Foundation.

Section 6.4 — Treasurer

The Treasurer shall oversee the financial affairs of the Foundation, including maintaining accurate financial records, overseeing preparation of financial statements and the annual Form 990, ensuring compliance with financial reporting requirements, and presenting financial reports at each formal Board meeting. The Treasurer shall sign checks and financial instruments as authorized by the Board.

Section 6.5 — Clerk

The Clerk shall be a resident of the Commonwealth of Massachusetts. The Clerk shall keep the records of all Board meetings, maintain the corporate records of the Foundation, certify documents on behalf of the Foundation, and ensure that all required filings are made with the Massachusetts Secretary of the Commonwealth and other relevant authorities. The Clerk shall maintain the Foundation's registered agent information and ensure it remains current.

Section 6.6 — Removal and Resignation

Any officer may be removed by a majority vote of the Board at any duly noticed meeting. Any officer may resign at any time by providing written notice to the President and Clerk. The resignation is effective upon receipt of written notice. The Clerk shall promptly notify all directors of the resignation by email and record it in the minutes of the next regular board meeting. Vacancies in any office shall be filled by the Board for the remainder of the term.

ARTICLE VII — FOUNDATION ADVISORS AND ADVISORY COMMUNITY

Section 7.1 — Foundation Advisors

The Foundation may recognize individuals as Foundation Advisors ("FAs"). Foundation Advisors are accomplished leaders from industry, academia, nonprofit, or government who support the Foundation's mission, provide strategic guidance, help identify new project ideas, and connect the Foundation with contributors and partners.

Section 7.2 — No Legal Authority

Foundation Advisors are not members of the Foundation within the meaning of Massachusetts law and hold no voting rights, fiduciary duties, or legal authority over the Foundation. The Board of Directors retains exclusive legal governance authority.

Section 7.3 — Relationship to Board

Directors of the Foundation are primarily drawn from the Foundation Advisor community. Serving as a director is an additional responsibility that certain Foundation Advisors accept, subject to the terms of Article IV. Foundation Advisors who are not directors participate in the Foundation's community roundtables and activities but are not required to attend formal Board meetings. In circumstances where the Board determines that a specific expertise or perspective is not available within the existing Foundation Advisor community, the Board may recruit and elect directors from outside the Foundation Advisor community in furtherance of the Foundation's mission and governance needs.

Section 7.4 — Technical Advisors

The Foundation may also recognize Technical Advisors ("TAs") who own and lead individual projects, provide technical oversight, and develop contributors. Technical Advisors participate in the Foundation's community activities. Technical Advisors hold no voting rights or fiduciary duties.

Section 7.5 — Contributors

The Foundation welcomes contributors — individuals who code, test, document, design, and drive projects to completion. Contributors hold no voting rights or legal standing in the Foundation. The Foundation is committed to ensuring all contributors feel recognized, supported, and valued.

Section 7.6 — Appointment and Removal

Foundation Advisors are appointed and may be removed by the Board, in consultation with the existing Foundation Advisor community using the consensus-based decision-making process described in the Foundation's Charter and Operating Principles. Technical Advisors and Contributors may be appointed and removed by the President, in consultation with the existing Foundation and Technical Advisors community. The President shall notify the Board of any such appointments or removals at the next regular board meeting.

ARTICLE VIII — COMMITTEES

Section 8.1 — Committees of the Board

The President may establish committees as needed to assist in carrying out the Foundation's work and day-to-day operations. The President shall appoint and remove committee members, including committee chairs, at their discretion. The President shall notify the Board and the Foundation Advisors of any committee formations, dissolutions, or membership changes at the next regular meeting.

Section 8.2 — Executive Committee

The President may establish an Executive Committee to assist in administering the Foundation's operations. The Executive Committee shall have no independent authority to bind the Foundation legally or financially without Board approval. The Executive Committee may include directors, Foundation Advisors, Technical Advisors, Contributors, or independent persons as the President deems appropriate.

Section 8.2 — Board Committees

The Board may separately establish committees exercising formal Board authority. Any such committee must consist solely of directors and shall operate under a written charter approved by the Board defining its purpose, composition, authority, and reporting obligations.

ARTICLE IX — FINANCIAL MATTERS

Section 9.1 — Fiscal Year

The fiscal year of the Foundation shall begin on January 1 and end on December 31 of each year.

Section 9.2 — Budget

The Treasurer shall prepare and present an annual budget for Board approval prior to the start of each fiscal year. The Board must approve any expenditure not included in the approved budget that exceeds a threshold set by Board resolution.

Section 9.3 — Financial Controls

The Foundation shall maintain accurate books and records of all financial transactions. The Treasurer shall present financial reports to the Board no less than four (4) times per year, at intervals of approximately three months. The Board shall ensure appropriate financial controls are in place, including dual authorization for significant expenditures as determined by Board resolution.

Section 9.4 — Annual Filing

The Foundation shall file all required annual reports and tax returns by their respective deadlines. Prior to receiving federal tax-exempt status, the Foundation shall file IRS Form 1120 (U.S. Corporation Income Tax Return) annually. Upon receiving 501(c)(3) tax-exempt status, the Foundation shall file IRS Form 990 (or the appropriate variant) annually in lieu of Form 1120. The Foundation shall also file the Massachusetts Annual Report with the Secretary of the Commonwealth by November 1st of each year, and the Massachusetts Form PC with the Attorney General's Office annually. The Treasurer is responsible for ensuring timely filing of all required returns and reports.

Section 9.5 — Audit

The Board shall arrange for an independent financial review or audit when required by Massachusetts law, when required by a funder, or when the Board determines it is in the best interest of the Foundation.

Section 9.6 — Prohibition on Private Benefit

No part of the net earnings of the Foundation shall inure to the benefit of any director, officer, advisor, or private individual. The Foundation shall not make any distribution of assets to any private person except in furtherance of its exempt purposes.

Section 9.7 — Record Retention

The Foundation shall maintain financial and corporate records in accordance with the following retention schedule:

Record Type	Retention Period
Tax returns and supporting documents	Permanent

Annual financial statements	Permanent
Board and corporate minutes	Permanent
Bylaws and Articles of Incorporation	Permanent
Contracts and legal agreements	7 years after expiration
Bank statements and reconciliations	7 years
Receipts and expense records	7 years
Grant records and agreements	7 years after close
Donation records and acknowledgments	7 years
Employment records	7 years after termination
Correspondence — general	3 years

The Treasurer is responsible for maintaining financial records in accordance with this schedule. The Clerk is responsible for maintaining corporate records. Records shall be stored securely in the Foundation's designated document management system. No records shall be destroyed if they are relevant to any pending or anticipated legal, regulatory, or financial matter regardless of the retention period above.

ARTICLE X — CONFLICT OF INTEREST

Section 10.1 — Policy Requirement

The Foundation shall maintain a written Conflict of Interest Policy. All directors, officers, Foundation Advisors, and Executive Committee members shall review and sign the policy annually. The policy shall comply with IRS requirements for 501(c)(3) organizations.

Section 10.2 — Disclosure

Any director or officer who has a direct or indirect financial interest in any transaction or matter before the Board — including where their employer, family member, or affiliated organization may benefit — must promptly disclose that interest to the Board.

Section 10.3 — Recusal

A director or officer with a disclosed conflict of interest shall not participate in discussion of, vote on, or otherwise attempt to influence the decision regarding the conflicted matter. The conflict and the recusal shall be documented in the meeting minutes.

Section 10.4 — Independence of Funding

Consistent with the Foundation's principles, funding received by the Foundation shall not purchase influence over the Foundation's decisions, priorities, or project selections. No donor, grantor, or sponsor shall have authority to direct the Foundation's activities as a condition of funding.

ARTICLE XI — DATA PRIVACY AND OPEN SOURCE

Section 11.1 — No Persistent Human Data for Users of Tools

For purposes of this Section, "Human Data" means any data generated by, about, or derived from a human individual, including but not limited to: personally identifiable information (name, physical address, email address, phone number, IP address, device identifiers, cookies and tracking tokens, government ID numbers, date of birth, biometric data, location data, and financial or health information); behavioral and interaction data (click data, keystroke data, mouse movements, scroll behavior, search queries, user inputs and prompts, session data, and device or browser information); photos, audio, or video of individuals; user generated content; inferred or derived attributes (including profiles, scores, or sensitive characteristics inferred from behavior); and any embeddings, model outputs, fine-tuning data, or training data derived from any of the foregoing.

The Foundation shall never persistently store, retain, or sell Human Data of users of its tools and products. The Foundation may process Human Data transiently within an active session solely to generate a response; no such data shall be retained after the session concludes. The Foundation shall never display advertising in any tool or product it develops or distributes.

The Foundation may collect and retain Machine Data — defined as aggregate operational and technical data not attributable to any individual, including server performance metrics, aggregate usage statistics, error rates, and infrastructure data — solely to ensure its tools are functioning effectively and delivering public benefit. All Machine Data collected shall be documented in the Foundation's internal records.

Section 11.2 — Open Source Default

The Foundation shall default to making all software, documentation, and technical decisions publicly available under open-source licenses (MIT, Apache-2.0, or equivalent), in furtherance of its charitable and educational mission. The Board may, in limited

circumstances, determine that releasing specific materials in open-source form would create material risk of harm to the public, in which case the Board shall document its reasoning and revisit the determination periodically.

Section 11.3 — Transparency

Consistent with the Foundation's principles, all Board decisions shall be logged and published on the Foundation's GitHub repository, except for decisions designated as confidential by the Board due to legal, security, personnel, or other sensitive considerations. The Foundation's product roadmaps, architectural decisions, and project documentation shall be publicly available, as appropriate. The Clerk shall maintain a complete record of all decisions, including confidential decisions, in the Foundation's internal corporate records.

ARTICLE XII — INDEMNIFICATION AND INSURANCE

Section 12.1 — Indemnification

The Foundation shall indemnify each current and former director, officer, and agent of the Foundation to the fullest extent permitted by the laws of the Commonwealth of Massachusetts against any claims, liabilities, costs, and expenses (including reasonable attorneys' fees) arising from their service to the Foundation, provided that such person acted in good faith and in a manner reasonably believed to be in the best interests of the Foundation.

Section 12.2 — Insurance

The Foundation shall obtain and maintain Directors and Officers (D&O) liability insurance in an amount determined by the Board to be appropriate, as soon as practicable after incorporation. The Foundation may also obtain such other insurance coverage as the Board deems appropriate.

Section 12.3 — Limitations

The Foundation shall not indemnify any person with respect to any matter as to which such person shall have been adjudicated in any proceeding to be liable for fraud, willful misconduct, or bad faith.

ARTICLE XIII — AMENDMENTS

Section 13.1 — Amendment of Bylaws

These Bylaws may be amended by a majority vote of the entire Board of Directors at any duly noticed formal Board meeting, provided that the proposed amendment was included in the meeting agenda delivered at least seven (7) days in advance.

Section 13.2 — Amendment of Mission, Vision, and Principles

Any amendment to the Foundation's mission, vision, or core principles — as set forth in the Charter and Operating Principles — requires the unanimous agreement of all Foundation Advisors, in addition to any Board approval required by Section 13.1. This heightened requirement reflects the Foundation's commitment to mission integrity and consistency

ARTICLE XIV — DISSOLUTION

Section 14.1 — Dissolution

The Foundation may be dissolved by a two-thirds (2/3) vote of the entire Board of Directors at a duly noticed meeting called for that purpose, subject to compliance with Massachusetts law.

Section 14.2 — Distribution of Assets

Upon dissolution of the Foundation, after paying or adequately providing for all debts and obligations, the remaining assets shall be distributed to one or more organizations qualifying as exempt under Section 501(c)(3) of the Internal Revenue Code, or to a federal, state, or local government for a public purpose, as determined by the Board of Directors. No assets shall be distributed to any director, officer, advisor, or private individual.

ARTICLE XV — MISCELLANEOUS

Section 15.1 — Ratification of Pre-Incorporation Activities

The Board hereby ratifies, adopts, and confirms all actions taken on behalf of the Foundation prior to the date of incorporation, including the establishment of the Foundation's website, GitHub organization, projects, tools, and community, and the engagement of Foundation Advisors, Technical Advisors, and Contributors. All such pre-incorporation activities are deemed to be activities of the Foundation as of the date of incorporation.

Section 15.2 — Severability

If any provision of these Bylaws is found to be invalid or unenforceable, the remaining provisions shall continue in full force and effect.

Section 15.3 — Governing Law

These Bylaws shall be governed by and construed in accordance with the laws of the Commonwealth of Massachusetts, including Chapter 180 of the Massachusetts General Laws.

CERTIFICATION OF ADOPTION

These Bylaws were duly adopted by the Board of Directors of The Benevolent Bandwidth Foundation, Inc. at the Organizational Meeting of the Corporation held on:

Signed by the President:

Nurtekin Savas President March 10, 2026

Signed by the Clerk:

Nurtekin Savas Clerk March 10, 2026